

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Date Purchased:

-----X
KRISTY ABREU, KENDY PAREDES and HUMBERTO
TAVERAS,

SUMMONS

Plaintiffs,

Plaintiffs designates New York
County as the place of trial.

- against -

The basis of venue is:
Location of occurrence.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE NEW YORK CITY POLICE
DEPARTMENT 32ND PRECINCT, NYC P.O.
CHOWDHURY (OFFICER ID # 952584) AND "JOHN
DOES", OTHER POLICE OFFICERS OF THE 32ND PCT
WHOSE NAMES AND IDENTITIES ARE PRESENTLY
UNKNOWN,

Plaintiffs reside at:
3235 Grand Concourse
Bronx, NY 10468

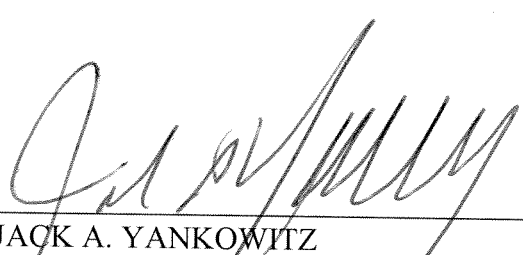
County of Bronx

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in their action, and to serve a copy of your answer, or, if the complaint is not served with their summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of their summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
May 16, 2014



JACK A. YANKOWITZ
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff(s)
KENDY PAREDES, KRISTY ABREU and
HUMBERTO TAVERAS,
175 East Shore Road

Great Neck, New York 11023
(516) 622-6200
Our File No. 7568 -13

TO:

THE CITY OF NEW YORK
The Comptroller of the City of New York
Municipal Building
1 Centre Street
New York, New York 10007
and/or
NYC Law Department
100 Church Street
New York, New York

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10013

NYC P.O. CHOWDHURY (OFFICER ID# 952584) and "JOHN DOES", unknown Police Officers
of the 32nd PCT.

C/O NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10013
32ND PRECINCT
250 West 135th Street
New York, NY 10030

NEW YORK CITY POLICE DEPARTMENT 32ND PRECINCT
C/O NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10013
and
250 West 135th Street
New York, NY 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KRISTY ABREU, KENDY PAREDES and HUMBERTO
TAVERAS,

Index No.:
Date Purchased:

Plaintiffs,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE NEW YORK CITY POLICE
DEPARTMENT 32ND PRECINCT, NYC P.O.
CHOWDHURY (OFFICER ID # 952584) AND "JOHN
DOES", OTHER POLICE OFFICERS OF THE 32ND PCT
WHOSE NAMES AND IDENTITIES ARE PRESENTLY
UNKNOWN,

Defendants.

-----X

Plaintiffs, by their attorneys, **THE YANKOWITZ LAW FIRM, P.C.**, complaining of the
Defendants, respectfully allege upon information and belief:

PRELIMINARY STATEMENT

1. This is an action about the rights of the plaintiffs, KRISTY ABREU and KENDY PAREDES, to travel in a safe environment free from unnecessary and excessive abuse, force and violent frightening encounters with armed New York City precinct based Police Officers, false arrest, malicious prosecution and a denial of their Civil Rights.

2. The plaintiffs KRISTY ABREU and KENDY PAREDES, bring this action against the defendants CITY OF NEW YORK, THE NYC POLICE DEPARTMENT, NYC POLICE DEPARTMENT 32ND PCT, NEW YORK CITY POLICE OFFICER CHOWDHURY AND

“ JOHN DOES” names being fictitious and representing OTHER POLICE OFFICERS OF THE 32ND PCT. WHOSE NAMES AND IDENTIFIES ARE PRESENTLY UNKNOWN, who carelessly, recklessly and negligently deprived and violated the plaintiffs’ civil and constitutional rights and caused, permitted and allowed them to be falsely arrested and imprisoned, maliciously prosecuted, assaulted and battered, physically, verbally and emotionally abused, injured and damaged.

FACTS

3. Upon information and belief, that on May 5, 2013, at approximately 9:00 PM at and/or near West 145th Street and 8th Avenue, the Plaintiff, KRISTY ABREU was a passenger in a motor vehicle (NYS plate # FSM-7266) owned and operated by her mother, claimant KENDY PAREDES, as they were in route to a charity function and fashion show where KRISTY ABREU was to make a guest appearance as the reigning Miss. Westchester 2013. That at the aforesaid time, date and place, the defendant NYC police officer Chowdhury (Shield # 952) and several other NYC Police Officers (identities presently unknown) stopped, frisked, interrogated and false accused the plaintiffs, KRISTY ABREU and KENDY PAREDES of driving a stolen vehicle..

4. That the plaintiffs advised the defendant, Chowdhury and the other unidentified NYC Police Officers that they owned the vehicle, it was properly registered and insured and provided documents and proof. That the defendant Chowdhury and the aforesaid unidentified NYC Police Officers ignored the statements and information provided by the plaintiffs, KRISTY ABREU and KENDY PAREDES, and the defendants refused to conduct an adequate and proper investigation. The defendant Chowdhury and the aforesaid unidentified officers used force and were abusive to the plaintiffs, they searched the plaintiffs, handcuffed the hands of the plaintiff KRISTY ABREU and plaintiff KENDY PAREDES behind their backs, denied and deprived the plaintiffs of their Civil and Constitutional rights, and falsely accused, threatened and intimidated the plaintiffs; the defendants then placed the plaintiffs, handcuffed behind their backs, into a police patrol car and transported them to the 32nd Pct., where the plaintiffs KRISTY ABREU and KENDY PAREDES

were falsely arrested and imprisoned, threatened, intimidated, handcuffed and placed into a jail cell for hours and hours.

5. During the aforesaid hours of false arrest and imprisonment by the defendants, the plaintiffs repeatedly tried to explain to defendant Chowdhury and the other NYC Police Officers they had made a mistake. During the hours of said false arrest and imprisonment of the two Plaintiffs, defendant Chowdhury and the other unidentified NYC Police Officers caused, permitted and allowed the plaintiffs to be verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed.

6. The defendants and other unidentified NYC Police Officers treated the plaintiffs like hardened criminals over the hours and hours of their false arrest and imprisonment; the plaintiffs KRISTY ABREU and KENDY PAREDES were handcuffed and confined in a cell during their ordeal; they were interrogated; they were fingerprinted; mug shots were taken; they were paraded through the 32nd Pct. with their hands handcuffed behind their back.

7. At all times herein mentioned and during the aforesaid false arrest and imprisonment, the defendants and the aforesaid unidentified NYC Police Officers denied the plaintiffs' access to legal counsel and were never read or provided with their Miranda Rights.

8. During the aforesaid false imprisonment of the plaintiffs KRISTY ABREU and KENDY PAREDES, they were handcuffed and verbally, physically and emotionally abused, intimidated, humiliated, embarrassed, ridiculed and defamed by defendant Chowdhury and other police officers/employees and agents of the NYCPD and 32nd Pct., whose identities are presently unknown. The NYCPD, THE NYCPD 32nd Pct., defendant P.O. Chowdhury, the said other police officers of the 32nd Pct., their agents, and/or employees used excessive and unnecessary force, assaulted and battered, false imprisoned and falsely arrested the plaintiffs KRISTY ABREU and KENDY PAREDES and falsely accused them of stealing and/or possessing a stolen car and denied their Civil Rights under NYS Law, Federal Law and the U.S. Constitution.

9. At all times following and during the false arrest and imprisonment, handcuffing and deprivation of the civil rights of these plaintiffs, KRISTY ABREU and KENDY PAREDES, the defendant Chowdhury and the other aforesaid unidentified NYC Police Officers and NYCPD, 32nd Pct. and their agents and employees possessed information and knowledge that the vehicle driven by the plaintiffs was not stolen and the claims and accusations against the plaintiffs were false and without merit as KRISTY ABREU and KENDY PAREDES repeatedly advised them as the registration, insurance and DMV records evidence, yet the defendants and defendant Chowdhury failed and refused to corroborate same. The aforesaid false arrest and continuous false imprisonment of the plaintiffs KRISTY ABREU and KENDY PAREDES were made without a warrant and without probable cause to believe a crime was committed.

10. Following the aforesaid false arrest, imprisonment and incarceration, with information and knowledge that the plaintiffs KRISTY ABREU and KENDY PAREDES committed no crime, the defendants, their agents servants and/or employees released the plaintiffs and filed no charges against them; however, without probable cause, confiscated the plaintiffs' vehicle and refused to release and return it to the plaintiffs for several weeks

11. The defendants, their agents, servants and/or employees deprived the plaintiffs KRISTY ABREU and KENDY PAREDES of their Civil Rights, both State and Federal (including but not limited to 42 USC §1983, 1981 AND THE 4TH and 14th Amendments of the United States Constitution; they denied these plaintiffs access to legal counsel; they failed to read these plaintiffs their Miranda Rights; the intentionally verbally, physically and emotionally abused, intimidated, threatened, humiliated, embarrassed and defamed these plaintiffs, KRISTY ABREU and KENDY PAREDES and victimized them with excessive, abusive and unnecessary force and maliciously arrested, imprisoned and incarcerated them without probable cause or a warrant.

12. At all times herein mentioned, the plaintiffs KRISTY ABREU and KENDY

PAREDES presented no danger to themselves or anyone else, including the defendants CHOWDHURY and unidentified police officers of the 32nd Pct., they had no weapons and provided no resistance to their aforesaid arrest, handcuffing and imprisonment.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

13. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

14. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

15. That at all times herein mentioned, the plaintiff KENDY PAREDES was the mother and natural guardian of the plaintiff, KRISTY ABREU and a resident of the City and State of New York.

16. That at all times herein mentioned, the plaintiff KRISTY ABREU was a resident in the City and State of New York.

17. Upon information and belief, that at all times herein mentioned, the defendant, P.O. CHOWDHURY (Shield # 952584), was and still is a resident of the State of New York.

18. Upon information and belief, that at all times herein mentioned, “JOHN DOES” the unidentified police officers of the 32nd Pct. defendants, were and still are residents of the State of New York.

19. Upon information and belief, that at all times herein mentioned, the defendant

P.O. CHOWDHURY (Shield # 952584) was employed by the defendants CITY OF NEW YORK and/or NYCPD and his conduct and actions set forth in this Complaint were in the course of her employment and in his official and individual capacity.

20. Upon information and belief, that at all times herein mentioned, “JOHN DOES” the unidentified police officers of the 32nd Pct. defendants were employed by the defendants CITY OF NEW YORK and/or NYCPD and their conduct and actions set forth in this Complaint were in the course of their employment and in their official and individual capacities.

21. That these plaintiffs have complied with all of the conditions precedent to the bringing of this action against the defendants and have complied with the provisions of the statute in such cases made provided; in particular plaintiffs have presented and served a Notice of Claim hereinafter mentioned (a copy of which is annexed hereto and incorporated herein by reference) upon the defendants on July 8th, 2013, and more that thirty 30 days have elapsed since the presentation of said claim and the claim remains unadjusted and the defendants have failed and/or refused to make any adjustments of same.

22. That a 50H hearing was requested by the defendants and these plaintiffs appeared and gave testimony on January 21, 2014.

23. That this action is being commenced within one year and ninety days of the occurrence complained herein.

24. This action falls within one or more of the exceptions set forth in CPLR § 1602.

25. That the Defendants CITY OF NEW YORK, NYCPD, 32nd PCT., CHOWDHURY, “JOHN DOES” representing unidentified police officers of the 32nd Pct., their agents, servants and/or employees were careless, reckless and negligent in falsely arresting, detaining, imprisoning and incarcerating the plaintiffs; in failing to properly train, instruct, supervise, monitor and control its police officers, agents, servants and employees; were careless, reckless and negligent in the

performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses corroborate the evidence and DMV records and respect and pay attention to the plaintiffs KRISTY ABREU and KENDY PAREDES; in falsely detaining, arresting and imprisoning the said plaintiffs in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the plaintiff, KRISTY ABREU, for approximately hours and deprivation of her civil rights; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, with a reckless disregard for the safety and welfare of said plaintiff KRISTY ABREU; in that they failed to employ sufficient and adequate personnel and employees. That the defendants the CITY of NEW YORK, the NYCPD and the NYCPD 32nd PCT., P.O. CHOWDHURY, their agents, servants and employees on and before May 5, 2013 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the CITY OF NEW YORK, NYCPD, THE NYCPD 32nd Pct., and the Police officers of the 32nd Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias, physical force and a disregard for the health, welfare and safety of the plaintiff, KRISTY ABREU herein. The aforesaid actions and conduct by defendants THE NEW YORK CITY POLICE DEPARTMENT 32nd Pct., NYC P.O. CHOWDHURY and the unidentified police officers of NYCPD 32nd Pct., their false arrest and imprisonment plaintiff KRISTY ABREU, the isolating, imprisoning, handcuffing, denial and deprivation of her civil rights, keeping her handcuffed, occurred pursuant to the practice of the NYCPD AND THE 32nd Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 32nd PCT., failed to adequately and properly train the defendant CHOWDHURY and the aforesaid unidentified police

officers of the 32nd Pct., with a deliberate indifference to the Civil Rights of the plaintiff KRISTY ABREU and her parents, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 32nd Pct., their agents, servants and/or employees deprived the said plaintiff, KRISTY ABREU of due process and violated her Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. Defendant' s THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, CHOWDHURY, unidentified police officers of the 32nd Pct., their agents, servants and/or employees maliciously assaulted and handcuffed the plaintiff KRISTY ABREU, verbally abused, intimidated, threatened and humiliated and embarrassed the plaintiff KRISTY ABREU and defamed her character. Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, P.O. CHOWDHURY and other unidentified NYCPD officers wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the plaintiff, KRISTY ABREU, handcuffed her for extended hours of time, falsely arrested her and deprived her of her liberty, violated her civil rights, isolated her and deprived her access to her parents and guardians, denied her access to legal counsel and verbally, physically and emotionally abused, defamed, humiliated, intimidated and embarrassed the plaintiff; all of which caused and inflicted serious injury and damage to the plaintiff KRISTY ABREU, herein set forth.

26. That as a result of the aforesaid incident the plaintiff, KRISTY ABREU was caused to sustain serious and severe personal injuries.

27. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from multiple bodily injuries, pain and distress, post

traumatic stress disorder, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

28. That the said occurrence and the injuries and damages to the plaintiff, KRISTY ABREU, resulting there from were caused solely and wholly by reason of the carelessness, recklessness and negligence of the defendants, their agents, servants and/or employees.

29. That by reason of the foregoing, the plaintiff, KRISTY ABREU , has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF, KRISTY ABREU**

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1 - 29 with the same force and effect as though the same were more fully set forth at length hereat.

31. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of unreasonable seizure and unlawful arrests and plaintiff KRISTY ABREU in particular, absent probable cause of criminal activity in violation of the Fourth and Fourteenth

Amendments to the United States Constitution and without a warrant.

32. Defendants, CHOWDHURY and unidentified police officers of the 32nd Pct. are liable, individually and in their official capacities, pursuant to 42 U.S.C. § 1983 for unreasonably confining, detaining, handcuffing, seizing and unlawfully arresting and imprisoning the infant plaintiff, KRISTY ABREU, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

33. The defendants, their agents, servants and/or employees deprived the plaintiff, KRISTY ABREU of due process and violated her Civil Rights under the Constitution and Laws of the State of New York and the United States of America, as well as all applicable Civil Rights Statutes, Laws, Ordinances, rules and regulations of the City and State of New York and the United States of American Federal Government.

34. This action falls within one or more of the exceptions set forth in CPLR § 1602.

35. That as a result of the defendants and their agents, servants and/or employees' aforesaid conduct, actions, negligence, carelessness and recklessness the plaintiff KRISTY ABREU sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of

America/Federal Government; and the plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

36. That by reason of the foregoing, the plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-36 with the same force and effect as though the same were more fully set forth at length here at.

38. The defendants, their agents, servants and/or employees wrongfully, unlawfully, maliciously assaulted, handcuffed, humiliated, embarrassed, seized, confined and imprisoned the plaintiff KRISTY ABREU on the street, in a police vehicle and at the NYCPD 32nd Pct. for approximately hours and hours, in view of her mother and others, causing her severe personal injuries.

39. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of using excessive force which was followed and used against the plaintiff, KRISTY ABREU in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

40. Defendants NYC P.O. CHOWDHURY and unidentified police officers of the 32nd Pct. in their individual and official capacities are liable pursuant to 42 U.S.C. § 1983 for using excessive force against the infant plaintiff, KRISTY ABREU in violation of the Fourth and

Fourteenth Amendment to the United States Constitution.

41. That the defendants, their agents, servants and/or employees acted under color of State Law to deprive the plaintiff KRISTY ABREU of her right to be free of excessive force as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution as enforced by 42 U.S.C. § 1983.

42. This action falls within one or more of the exceptions set forth in CPLR § 1602.

43. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

44. That by reason of the foregoing, the infant plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-44 with the same force and effect as though the same were more fully set forth at length hereat.

46. That the defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of committing abuses which they committed against the plaintiff, KRISTY ABREU, depriving her of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

47. Defendants CHOWDHURY and the unidentified police officers of the 32nd Pct. are liable pursuant to 42 U.S.C. § 1983 for abuses against the plaintiff, KRISTY ABREU, depriving her of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

48. This action falls within one or more of the exceptions set forth in CPLR § 1602.

49. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United

States of America/Federal Government; and the plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

50. That by reason of the foregoing, the plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-50 with the same force and effect as though the same were more fully set forth at length hereat.

52. By their actions, as set forth in this complaint and exhibits annexed, the defendants, their agents, servants and/or employees, in their official and individual capacities, acted under color of State Law to deprive the plaintiff, KRISTY ABREU of her right to be free from false arrest and false imprisonment as guaranteed by the Fourth and Fourteenth Amendments of the Federal Constitution, as enforced by to 42 U.S.C. § 1983.

53. This action falls within one or more of the exceptions set forth in CPLR § 1602.

54. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character

and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff K RISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

55. That by reason of the foregoing, the plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-55 with the same force and effect as though the same were more fully set forth at length hereat.

57. The defendants CITY OF NEW YORK and NYCPD are liable for the unreasonable seizures and unlawful arrests in the City of New York and plaintiff KRISTY ABREU in particular, in violation of Article 1 § 12 of the New York Constitution.

58. Defendants, CHOWDHURY and , unidentified police officers of the 32nd Pct. are liable pursuant to Article 1 § 12 of the New York Constitution for unreasonable seizure and unlawful arrest of the plaintiff, KRISTY ABREU.

59. This action falls within one or more of the exceptions set forth in CPLR § 1602.

60. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

61. That by reason of the foregoing, the plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

62. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-61 with the same force and effect as though the same were more fully set forth at length hereat.

63. The Defendants, CITY OF NEW YORK and NYCPD are liable for the false arrest of the plaintiff, KRISTY ABREU in particular, in violation of New York Law.

64. Defendants, P.O. CHOWDHURY and unidentified police officers of the 32nd Pct.

are liable for the false arrest of the infant plaintiff, KRISTY ABREU in violation of New York State law.

65. This action falls within one or more of the exceptions set forth in CPLR § 1602.

66. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

67. That by reason of the foregoing, the infant plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-67 with the same force and effect as though the same were more fully set forth at length hereat.

69. The Defendants, CITY OF NEW YORK and NYCPD are liable for the assault and battery of the plaintiff, KRISTY ABREU in particular, in violation of New York Law.

70. Defendants, P.O. CHOWDHURY and , unidentified police officers of the 32nd Pct. are liable for the assault and battery of the infant plaintiff, KRISTY ABREU in violation of New York State law.

71. This action falls within one or more of the exceptions set forth in CPLR § 1602.

72. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

73. That by reason of the foregoing, the plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

74. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-73 with the same force and effect as though the same were more fully set forth at length hereat.

75. That all accusations and charges against the plaintiff, KRISTY ABREU were false which was at all times known to the defendants, their agents, servants and/or employees.

76. That the defendants, their agents, servants and/or employees falsely arrested, imprisoned and maliciously incarcerated and detained the plaintiff, KRISTY ABREU and as a result of defendants abuse of process, the plaintiff KRISTY ABREU was caused and subjected to great indignation and humiliation, embarrassment, pain and distress of mind and body, post traumatic stress disorder and suffered injury and damage and defamation of her good name and reputation in the community, among her friends, neighbors, and others.

77. This action falls within one or more of the exceptions set forth in CPLR § 1602.

78. That as a result of the aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of

America/Federal Government; and the plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

79. That by reason of the foregoing, the plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KRISTY ABREU**

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-79 with the same force and effect as though the same were more fully set forth at length hereat.

81. As a result of the defendants and their agents, servants and/or employees' aforesaid intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this complaint, the plaintiff, KRISTY ABREU claims punitive damages against the defendants.

82. This action falls within one or more of the exceptions set forth in CPLR § 1602.

83. That as a result of the defendants aforesaid conduct, intentional, willful actions, gross negligence, gross carelessness and gross recklessness of the defendants, their agents, servants and/or employees the plaintiff KRISTY ABREU sustained and continues to suffer from multiple post traumatic stress disorder, bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family,

friends, neighbors and others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KRISTY ABREU was caused to incur and continues to incur expenses for medical attention and treatment.

84. That by reason of the foregoing, the infant plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

85. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1 - 84 with the same force and effect as though the same were more fully set forth at length hereat.

86. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

87. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

88. That at all times herein mentioned, the plaintiff KENDY PAREDES was a resident of the, City and State of New York.

89. Upon information and belief, that at all times herein mentioned, the defendant,

P.O. CHOWDHURY (Shield # 952584), was and still is a resident of the State of New York.

90. Upon information and belief, that at all times herein mentioned, “ JOHN DOES” the unidentified police officers of the 32nd Pct. the defendants, were and still are residents of the State of New York.

91. Upon information and belief, that at all times herein mentioned, the defendant CHOWDHURY (Shield # 952584) was employed by the defendants CITY OF NEW YORK and/or NYCPD and his conduct and actions set forth in this Complaint were in the course of his employment and in his official and individual capacity.

92. Upon information and belief, that at all times herein mentioned, “ JOHN DOE” the unidentified police officer of 32nd Pct. defendants were employed by the defendants CITY OF NEW YORK and/or NYCPD and their conduct and actions set forth in this Complaint were in the course of their employment and in their official and individual capacities.

93. That these plaintiffs have complied with all of the conditions precedent to the Bringing of this action against the defendants and have complied with the provisions of the statute in such cases made provided; in particular plaintiffs have presented and served a Notice of Claim hereinafter mentioned (a copy of which is annexed hereto and incorporated herein by reference) upon the defendants on July 8, 2013, and more that thirty 30 days have elapsed since the presentation of said claim and the claim remains unadjusted and the defendants have failed and/or refused to make any adjustments of same.

94. That a 50H hearing was requested by the defendants and these plaintiffs appeared and gave testimony on January 21, 2014.

95. That this action is being commenced within one year and ninety days of the occurrence complained herein.

96. This action falls within one or more of the exceptions set forth in CPLR § 1602.

97. That the defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 32ND PCT., P.O. CHOWDHURY, “JOHN DOES” representing the aforesaid unidentified police officer of 32nd Pct., their agents, servants and/or employees were careless, reckless and negligent in falsely arresting, detaining, imprisoning and incarcerating the plaintiffs; in failing to properly train, instruct, supervise, monitor and control its police officers, agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses, corroborated the evidence and DMV records and respect and pay attention to the plaintiffs KENDY PAREDES and KRISTY ABREU; in falsely detaining, arresting and imprisoning the said plaintiffs in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the plaintiff, KENDY PAREDES, for approximately hours and deprivation of her civil rights and denial of access to her parents and guardians; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, with a reckless disregard for the safety and welfare of said plaintiff KENDY PAREDES; in that they failed to employ sufficient and adequate personnel and employees. That the defendants the CITY of NEW YORK, the NYCPD and the NYCPD 32nd PCT., P.O. CHOWDHURY, their agents, servants and employees on and before May 5, 2013 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the CITY OF NEW YORK, NYCPD, THE NYCPD 32nd Pct., and the Police officers of the 32nd Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures,

racial and socio-economic bias, physical force and a disregard for the health, welfare and safety of plaintiff KENDY PAREDES herein. The aforesaid actions and conduct by defendants THE NEW YORK CITY POLICE DEPARTMENT 61st Pct., NYC P.O. CHOWDHURY and the unidentified police officers of NYCPD 32nd Pct., their false arrest and imprisonment of plaintiff KENDY PAREDES, the isolating, imprisoning, handcuffing, denial and deprivation of her civil rights, their denial and refusing access her handcuffed, occurred pursuant to the practice of the NYCPD AND THE 32nd Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 32nd PCT., failed to adequately and properly train the defendant CHOWDHURY and the aforesaid unidentified police officers of the 32nd Pct., with a deliberate indifference to the Civil Rights of the plaintiff KENDY PAREDES, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 32nd Pct., their agents, servants and/or employees deprived the said plaintiff, KENDY PAREDES of due process and violated her Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. Defendant' s THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, CHOWDHURY, unidentified police officer of 32nd Pct., their agents, servants and/or employees maliciously assaulted and handcuffed the plaintiff KENDY PAREDES, verbally abused, intimidated, threatened and humiliated and embarrassed the plaintiff KENDY PAREDES and defamed her character. Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, CHOWDHURY and other unidentified

NYCPD officers wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said plaintiff, KENDY PAREDES, handcuffed her for extended hours of time, falsely arrested her and deprived her of her liberty, violated her civil rights, isolated her and deprived her access to her parents and guardians, denied her access to legal counsel and verbally, physically and emotionally abused, defamed, humiliated, intimidated and embarrassed her; all of which caused and inflicted serious injury and damage to the plaintiff KENDY PAREDES, herein set forth.

98. That as a result of the aforesaid incident the plaintiff, KENDY PAREDES was caused to sustain serious and severe personal injuries.

99. That as a result of the defendants aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from multiple bodily injuries, pain and distress, post traumatic stress disorder, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors, teachers and others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

100. That the said occurrence and the injuries and damages to the plaintiff, KENDY PAREDES, resulting there from were caused solely and wholly by reason of the carelessness, recklessness and negligence of the defendants, their agents, servants and/or employees.

101. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TWELFTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF, KENDY PAREDES**

102. Plaintiff repeats, reiterate and realleges each and every allegation contained in the paragraphs 1 - 101 with the same force and effect as though the same were more fully set forth at length hereat.

103. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of unreasonable seizure and unlawfully arrests, and plaintiff KENDY PAREDES in particular, absent probable cause of criminal activity in violation of the Fourth and Fourteenth Amendments to the United States Constitution and without a warrant.

104. Defendants, CHOWDHURY and unidentified police officer of 32nd Pct. are liable, individually and in their official capacities, pursuant to 42 U.S.C. § 1983 for unreasonably confining, detaining, handcuffing, seizing and unlawfully arresting and imprisoning the plaintiff, KENDY PAREDES, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

105. The defendants, their agents, servants and/or employees deprived the plaintiff, KENDY PAREDES of due process and violated her Civil Rights under the Constitution and Laws of the State of New York and the United States of America, as well as all applicable Civil Rights Statutes, Laws, Ordinances, rules and regulations of the City and State of New York and the United States of American Federal Government.

106. This action falls within one or more of the exceptions set forth in CPLR § 1602.

107. That as a result of the defendants and their agents, servants and/or employees' aforesaid conduct, actions, negligence, carelessness and recklessness the plaintiff KENDY PAREDES sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

108. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

109. Plaintiff repeats, reiterates and realleges each and every allegation Contained in the paragraphs 1-108 with the same force and effect as though the same were more fully set forth at length hereat.

110. The defendants, their agents, servants and/or employees wrongfully, unlawfully, maliciously assaulted, handcuffed, humiliated, embarrassed, seized, confined and imprisoned

the plaintiff KENDY PAREDES on the street, in a police vehicle and at the NYCPD 32nd Pct. for approximately hours and hours, in view of her daughter and others, causing her severe personal injuries.

111. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of using excessive force which would use and followed against plaintiff, KENDY PAREDES in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

112. Defendants NYC P.O. CHOWDHURY and unidentified police officer of 32nd Pct. in their individual and official capacities are liable pursuant to 42 U.S.C. § 1983 for using excessive force against the plaintiff, KENDY PAREDES in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

113. That the defendants, their agents, servants and/or employees acted under color of State Law to deprive the plaintiff KENDY PAREDES of her right to be free of excessive force as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution as enforced by 42 U.S.C. § 1983.

114. This action falls within one or more of the exceptions set forth in CPLR § 1602.

115. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and

others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

116. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

117. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-116 with the same force and effect as though the same were more fully set forth at length hereat.

118. That the defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of committing abuses which they committed against the plaintiff, KENDY PAREDES, depriving her of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

119. Defendants CHOWDHURY and the unidentified police officer of 32nd Pct. are liable pursuant to 42 U.S.C. § 1983 for abuses against the plaintiff, KENDY PAREDES, depriving her of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

120. This action falls within one or more of the exceptions set forth in CPLR § 1602.

121. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

122. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

123. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-122 with the same force and effect as though the same were more fully set forth at length hereat.

124. By their actions, as set forth in this complaint and exhibits annexed, the

defendants, their agents, servants and/or employees, in their official and individual capacities, acted under color of State Law to deprive the plaintiff, KENDY PAREDES of her right to be free from false arrest and false imprisonment as guaranteed by the Fourth and Fourteenth Amendments of the Federal Constitution, as enforced by to 42 U.S.C. § 1983.

125. This action falls within one or more of the exceptions set forth in CPLR § 1602.

126. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

127. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

128. Plaintiff repeat, reiterates and realleges each and every allegation contained in the paragraphs 1-127 with the same force and effect as though the same were more fully set forth at length hereat.

129. The defendants CITY OF NEW YORK and NYCPD are liable for the unreasonable seizures and unlawful arrests in the City of New York and plaintiff KENDY PAREDES in particular, in violation of Article 1 § 12 of the New York Constitution.

130. Defendants, CHOWDHURY and unidentified police officer of 32nd Pct. are liable pursuant to Article 1 § 12 of the New York Constitution for unreasonable seizure and unlawful arrest of the plaintiff, KENDY PAREDES.

131. This action falls within one or more of the exceptions set forth in CPLR § 1602.

132. That as a result of the aforesaid conduct, actions, negligence, carelessness, and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable deprivations and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

133. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been

damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

134. Plaintiff repeat, reiterates and realleges each and every allegation contained in the paragraphs 1-133 with the same force and effect as though the same were more fully set forth at length hereat.

135. The Defendants, CITY OF NEW YORK and NYCPD are liable for the false arrest of the plaintiff, KENDY PAREDES in particular, in violation of New York Law.

136. Defendants, P.O. CHOWDHURY and unidentified police officer of 32nd Pct. are liable for the false arrest of the plaintiff, KENDY PAREDES in violation of New York State law.

137. This action falls within one or more of the exceptions set forth in CPLR § 1602.

138. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United

States of America/Federal Government; and plaintiff KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

139. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

140. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-139 with the same force and effect as though the same were more fully set forth at length hereat.

141. The Defendants, CITY OF NEW YORK and NYCPD are liable for the assault and battery of the plaintiff, KENDY PAREDES in particular, in violation of New York Law.

142. Defendants, P.O. CHOWDHURY and unidentified police officer of 32nd Pct. are liable for the assault and battery of the plaintiff, KENDY PAREDES in violation of New York State law.

143. This action falls within one or more of the exceptions set forth in CPLR § 1602.

144. That as a result of the aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and

others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

145. That by reason of the foregoing, the plaintiff, KRISTY ABREU, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

146. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-145 with the same force and effect as though the same were more fully set forth at length hereat.

147. That all accusations and charges against the infant plaintiff, KENDY PAREDES were false which was at all times known to the defendants, their agents, servants and/or employees.

148. That the defendants, their agents, servants and/or employees falsely arrested, imprisoned and maliciously incarcerated and detained the plaintiff, KENDY PAREDES and as a result of defendants abuse of process, the plaintiff KENDY PAREDES was caused and subjected to great indignation and humiliation, embarrassment, pain and distress of mind and body, post traumatic stress disorder and suffered injury and damage and defamation of her good name and reputation in the community, among her friends, neighbors, teaches and others.

149. This action falls within one or more of the exceptions set forth in CPLR § 1602.

150. That as a result of the aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from post traumatic stress disorder, multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the infant claimant KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

151. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINETEENTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF KENDY PAREDES**

152. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs 1-151 with the same force and effect as though the same were more fully set forth at length hereat.

153. As a result of the defendants and their agents, servants and/or employees'

aforesaid intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this complaint, the plaintiff, KENDY PAREDES claims punitive damages against the defendants.

154. This action falls within one or more of the exceptions set forth in CPLR § 1602.

155. That as a result of the defendants aforesaid conduct, intentional, willful actions, gross negligence, gross carelessness and gross recklessness of the defendants, their agents, servants and/or employees the plaintiff KENDY PAREDES sustained and continues to suffer from multiple post traumatic stress disorder, bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable deprivation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and the plaintiff KENDY PAREDES was caused to incur and continues to incur expenses for medical attention and treatment.

156. That by reason of the foregoing, the plaintiff, KENDY PAREDES, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TWENTIETH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF HUMBERTO TAVERAS**

157. Plaintiff repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-156 with the same force and effect as though the same were

more fully set forth at length hereat.

158. At all times herein mentioned, the plaintiff HUMBERTO TAVERAS was and still is the spouse of plaintiff, KENDY PAREDES.

159. That by reason of the forgoing, plaintiff, HUMBERTO TAVERAS has been deprived of the services, society and companionship of plaintiff, KENDY PAREDES and caused to incur and continues to incur expenses and costs for her medical care and treatment for injuries and damages caused by the defendants' aforesaid conduct, actions, carelessness, recklessness and negligence.

160. The plaintiff HUMBERTO TAVERAS sustained and continues to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable deprivation and denial of due process and his Civil Rights guaranteed under the Constitution of the United States of America and the State of New York, as well as the Civil rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of American/Federal Government.

161. That by reason of the forgoing, plaintiff HUMBERTO TAVERAS, has been damaged in a sum which exceeds the jurisdictional limits of all lower costs which would otherwise have jurisdiction and these plaintiffs further claim punitive damages against the defendants as a result of their intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set forth in this Complaint.

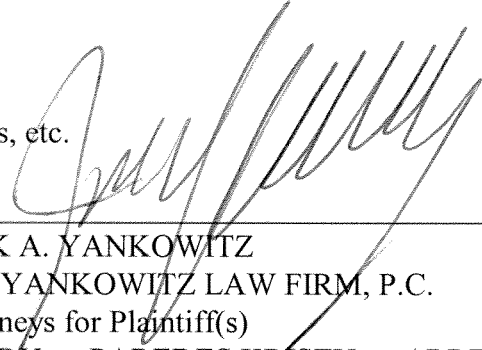
162. This action falls within one or more of the exceptions set forth in CPLR § 1602.

163. That by reason of the foregoing, the plaintiffs, HUMBERTO TAVERAS, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction and punitive damages against the defendants.

WHEREFORE, plaintiffs demand judgment against the defendants on the FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH, SEVENTH, EIGHTH, NINETH, TENTH, ELEVENTH, TWELVETH, THIRTEENTH, FORTEENTH, FIFTEENTH, SIXTEENTH, SEVENTEENTH, EIGHTEENTH, NINETEENTH AND TWENTIETH CAUSES OF ACTION, for damages in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction in all Actions, together with costs, attorney fees and disbursements of these actions.

Dated: Great Neck, New York
May 16, 2014

Yours, etc.



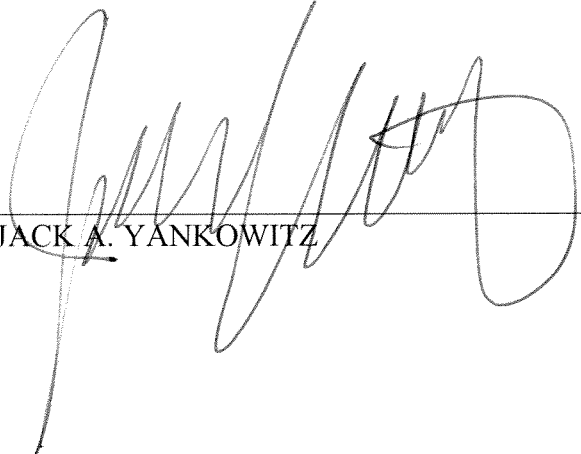
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175 East Shore Road
Great Neck, New York 11023
(516) 622-6200/7568 -13
Our File No. 7568 -13

ATTORNEY'S VERIFICATION

JACK A. YANKOWITZ, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at THE YANKOWITZ LAW FIRM, P.C., attorneys of record for Plaintiff(s), Kendy Paredes, Kristy Abreu and Humberto Taveras. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Great Neck, New York
May 16, 2014



JACK A. YANKOWITZ

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

**KRISTY ABREU, KENDY PAREDES
and HUMBERTO TAVERAS**

- against -

**THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT
THE NEW YORK CITY POLICE DEPARTMENT 32ND PRECINCT
NYC P.O. CHOWDHURY (OFFICER ID # 952584) AND
OTHER POLICE OFFICERS OF THE 32ND PCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN**
-----X

TO: The Comptroller of the City of New York
Municipal Building • 1 Centre Street, New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, New York, NY 10013

NYC P.O. CHOWDHURY
C/O NEW YORK CITY POLICE DEPARTMENT
32ND PRECINCT
1 Police Plaza, New York, NY 10013

NEW YORK CITY POLICE DEPARTMENT 32ND PRECINCT
C/O NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, New York, NY 10013
And
250 West 135th Street. New York, NY 10030

PLEASE TAKE NOTICE that the undersigned claimant hereby makes claim and demands against you as follows:

1. Name and post office address of each claimant and claimants' attorneys is:

Claimants
KRISTY ABREU
KENDY PAREDES
HUMBERTO TAVERAS
3235 Grand Course, Apt# 2G
Bronx, NY 10468

Attorney
THE YANKOWITZ LAW FIRM, P.C.
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200

2. The nature of the claim: To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, false arrest and imprisonment and all damages permitted by Statute and Case Law, incurred by and on behalf of claimants KRISTY ABREU and KENDY PAREDES, and punitive damages, by reason of their false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious

prosecution, physical, verbal and emotional abuse, and the gross negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. CHOWDHURY, other police officers of the NYCPD 32ND Pct. whose names and identities are presently unknown, and their agents, servants and/or employees, and loss of services, companionship, consortium and society. on behalf of claimant, HUMBERTO TAVERAS husband of KENDY PAREDES, and all other damages allowed by Statute and Case Law.

3. The time when, the place where and the manner in which the Claim arose: Upon information and belief, the claims arose on May 5, 2013 at approximately 9:00 PM at and/or near West 145th Street and 8th Avenue, New York, New York. At said time, date and place, the claimant KRISTY ABREU was a passenger in a motor vehicle (NYS plate # FSM-7266) owned and operated by her mother, claimant KENDY PAREDES, as they were in route to a fashion show where KRISTY ABREU was to make a guest appearance as the reigning Miss. Westchester 2013 (see photo annexed).

At said time, date and place Police Officer Chowdhury (ID # 952584) and other NYC Police Officers whose names and identities are presently unknown, stopped the claimants' said vehicle for an alleged minor traffic violation. The claimants presented the vehicles registration, insurance card as well as the license of claimant KENDY PAREDES, as requested by said NYC police officers. (The claimants aforesaid vehicle was purchased by KENDY PAREDES in 2011. Documentation regarding title of the vehicle provided by the seller are annexed hereto). Thereafter, the aforesaid NYC police officers threw claimant KENDY PAREDES against her vehicle, handcuffed her behind her back and placed her under arrest, put her into the back seat of a NYC patrol car and falsely claimed that she was driving a "stolen car". During the next 20-25 minutes, claimant KRISTY ABREU had advised the aforesaid NYC police officers that they had made a terrible mistake, that their vehicle (NYS plate # FSM-7266) was not stolen and was purchased in 2011, was properly registered and insured. Claimant KRISTY ABREU further advised said NYC police officers that in approximately December 2012, while driving said vehicle she was stopped by NYC police officers who ran a check on the said vehicle registration and advised her that there was a computer error regarding the vehicle vin number and there were getting a "stolen vehicle false alarm." NYC police officers said the error was corrected and she was "good to go". That after claimant KRISTY ABREU provided the aforesaid detailed information and explanation to the aforesaid NYC police officers, said officers ignored her statements and information, subjected her to an extremely invasive frisk and search, handcuffed her behind her back causing her extreme pain, arrested her and placed her into the back seat of a NYC patrol car. During this entire process, the aforesaid police officers were laughing at and mocking the claimants.

Both claimants handcuffed behind their backs, were hauled off to the 32nd Pct. by the aforesaid NYC police officers. At said precinct the claimants were handcuffed, placed into a prison cell, fingerprinted, mug-shots were taken, their possessions were taken from them, including claimant KRISTY ABREU's Miss. Westchester 2013 sash and crown and they were patted down. The aforesaid police officers at the 32nd Pct. falsely imprisoned the claimant, KRISTY ABREU for approximately 2 hours at the 32nd Pct and falsely imprisoned the claimant KENDY PAREDES for approximately 8 hours. During the aforesaid false imprisonment, the aforesaid NYC police officers threatened, intimidated and humiliated the claimants, threatened to "take them down town, keep them in a cell overnight and they will see a Judge in the morning" and placed the claimants into a cell with a prisoner who was permitted to yell and scream and curse at and taunt the claimants, and this prisoner repeatedly spit at and on the claimants, all of which was ignored by and permitted by the aforesaid officers and caused the claimants great fear, anxiety and to cry uncontrollably.

After arrival at the 32nd Pct. the claimant KRISTY ABREU again advised and explained to said NYC police officers they had made a terrible mistake, there was clearly a computer or record

error which the NYCPD had been on notice and aware of earlier in December 2012 when she was stopped and the vehicle's registration was checked. At the 32nd Pct a NYC police officer ran a further computer/record check regarding claimants said vehicle and advised claimant KRISTY ABREU that they were aware that she was stopped before for the registration problem and there was a "glitch" in the system but refused to release the claimants. During their incarceration, the claimants were denied access to a telephone, denied food or drink, access to a bathroom, denied access to legal counsel and were not read or advised of their Miranda and Constitutional Rights.

After about 2 hours of incarceration, a NYC police officer named "JOSE "DOE" (last name being fictitious and presently unknown) at the 32nd Pct., who was an acquaintance of claimant KRISTY ABREU and had knowledge that the subject vehicle was the claimant's vehicle, arranged for the release of claimant KRISTY ABREU, returned her belongings, drove her to her home and told her to obtain the title paper work from the dealer which sold the subject vehicle to claimant KENDY PAREDES. Over the next approximately 5 hours, through the early morning of May 6, 2013, KRISTY ABREU and her father tracked down the car dealer and returned to the 32nd Pct. at approximately 5:00 A.M. with the dealer's title documents regarding the subject car's purchase from an auction (see documents annexed). After approximately 8 hours of false arrest and incarceration, the claimant KENDY PAREDES was released. Upon release of claimant KENDY PAREDES, said NYC police officers at the 32nd Pct. gave her the license plates of her vehicle (photos annexed) and advised her they were confiscating and would not release her car. Several weeks later, claimant KENDY PAREDES received a call from the NYCPD advising her that they have released her car and she could pick it up, with no further explanation.

At no time did the claimants KRISTY ABREU and KENDY PAREDES resist arrest, pose a threat or danger to themselves or to any NYC police officer, or to any other person(s), they had no weapon and cooperated in answering questions and providing information.

There was no prosecution of the claimants for a "stolen vehicle" or any other crime, no appearance tickets were ever issued. After hours of false arrest and incarceration as described herein, NYC police officer Chowdhury merely handed claimant KENDY PAREDES a traffic ticket for an alleged minor traffic violation (copy annexed).

During the aforesaid false imprisonment, the claimants were handcuffed and verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by P.O. Chowdhury and other police officers/employees and agents of the NYCPD and 32nd Pct., whose identities are presently unknown. The NYCPD, the NYCPD 32nd Pct., P.O. Chowdhury, the said other police officers of the 32nd Pct., their agents, and/or employees used excessive and unnecessary force, falsely imprisoned and falsely arrested the claimants KRISTY ABREU AND KENDY PAREDES and falsely accused them of operating and possession of a stolen vehicle.

At all times following and during the false arrest and imprisonment, handcuffing and deprivation of the Civil Rights of the claimants KRISTY ABREU AND KENDY PAREDES, P.O. Chowdhury and the other aforesaid unidentified NYC police officers and NYCPD, 32nd Pct. and their agents and employees possessed information and knowledge that the stolen vehicle claims and accusations against the claimants were false and without merit as KRISTY ABREU advised them and their own computers and records indicated or should have indicated as well as the NYS DMV records indicated. NYC police officers and the 32nd Pct. failed and refused to corroborate same. The aforesaid false arrest and imprisonment of the claimants KRISTY ABREU AND KENDY PAREDES were made without a warrant and without probable cause to believe a crime was committed.

The NYCPD, 32nd Pct., P.O. Chowdhury and other unidentified NYC police officers failed and refused to read and advise the claimants of their Miranda and Constitutional Rights; claimants

were denied access to a telephone and access to legal counsel; they were denied food and drink; they were treated like hardened criminals; during their aforesaid hours of false arrest and imprisonment, the claimants were handcuffed and continuously verbally, physically and emotionally abused, finger printed, mug shots taken, intimidated and humiliated and they were denied and deprived of their Civil Rights both State and Federal, including but not limited to 42 USC § 1983, 1981 and the Fourth Amendment and Fourteenth Amendment of the United States Constitution.

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and the NYCPD 32nd Pct., their agents, servants and/or employees and P.O. Chowdhury and other unidentified NYC police officers of the 32nd Pct. were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the NYS DMV records, their own computer information and records and the claimants themselves as described above; in falsely detaining, arresting and imprisoning the said claimants KRISTY ABREU AND KENDY PAREDES; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the claimant KRISTY ABREU for more than 2 hours and the claimant KENDY PAREDES for more than 8 hours, deprivation of their civil rights; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said claimants; in that they failed to employ sufficient and adequate personnel and employees. That the City of NEW YORK, the NYCPD and the NYCPD 32nd PCT., their agents, servants and employees on and before May 5th, 2013 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 32nd Pct., and the Police officers of the 32nd Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force. The aforesaid actions and conduct by P.O. Chowdhury, other unidentified police officers of NYCPD 32nd Pct., their false arrest and imprisonment of claimants,, the isolating, imprisoning, handcuffing, denial and deprivation of their civil rights, their denial and refusing access to counsel while keeping them imprisoned and handcuffed, occurred pursuant to the practice of the NYCPD AND THE 32nd Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. (See, N.Y. Times Article by Ray Rivera Published August 15, 2012, copy annexed; See, N.Y. Daily News Article by Jennifer H. Cunningham, Published July 2, 2013; See, Sending a Message for Jazz, by Yoni Golijov Published September 6, 2012, (copy annexed); See You Tube Video, 32nd Precinct Police Brutality, published May 31, 2013, copy annexed and Stop & Frisk, published August 1, 2011, Copy annexed. The CITY OF NEW YORK, NYCPD and NYCPD 32nd PCT., failed to adequately and properly train P.O. Chowdhury and other aforesaid unidentified police officers of the 32nd Pct., with a deliberate indifference to the Civil Rights of the claimants, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CHOWDHURY, their agents, servants and/or employees deprived the said claimants, of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. CHOWDHURY, their agents, servants and/or employees maliciously assaulted and handcuffed the claimants, verbally abused and humiliated and embarrassed the claimants, and defamed their character. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. CHOWDHURY and other unidentified NYC police officer, their agents, servants and/or employees wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said claimants, KRISTY ABREU AND KENDY PAREDES, handcuffed them for extended hours of time, falsely arrested them and deprived them of their liberty, violated their civil rights, isolated them, denied them access to legal counsel and verbally physically and emotionally abused, defamed, intimidated,

humiliated and embarrassed them; all of which caused and inflicted serious injury and damage to the claimants KRISTY ABREU AND KENDY PAREDES, herein set forth.

4. The Claimant KRISTY ABREU sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment and legal counsel. The claimant, KRISTY ABREU, has suffered damages in the sum of FIFTY MILLION DOLLARS (\$50,000,000.00).

Claimant KRISTY ABREU further claims punitive damages in the amount of FIFTY MILLION (\$50,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon the claimant and the aforesaid false and malicious arrest and deprivation of the Civil and Constitutional Rights of the claimant, KRISTY ABREU, who was lawfully a passenger in her mother's vehicle, on their way to a fashion show on May 5, 2013, by THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 32nd Pct., P.O. CHOWDHURY, their agents, servants and employees and other unidentified NYC police officers.

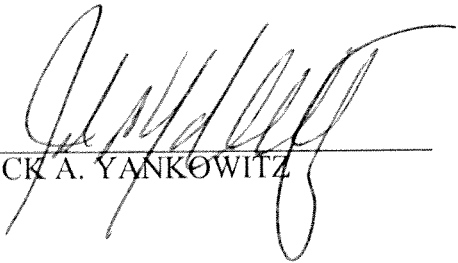
5. The Claimant KENDY PAREDES sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to her name, character and reputation in the community and among her family, friends, neighbors and others, has suffered unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment and legal counsel. The claimant, KENDY PAREDES, has suffered damages in the sum of FIFTY MILLION DOLLARS (\$50,000,000.00).

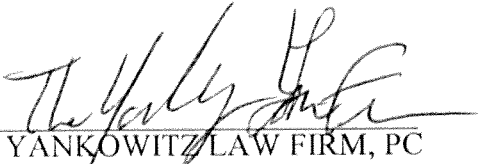
Claimant KENDY PAREDES further claims punitive damages in the amount of FIFTY MILLION (\$50,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon the claimant and the aforesaid false and malicious arrest and deprivation of the Civil and Constitutional Rights of the claimant, , who was lawfully driving her vehicle, on their way to a fashion show on May 5, 2013, by THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 32nd Pct., P.O. CHOWDHURY, their agents, servants and employees and other unidentified NYC police officers.

The undersigned and claimants herein therefore present these claims for adjustment and payments. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

6. Claimant, HUMBERTO TAVERAS has sustained loss of services and loss of companionship, consortium and society as a result of the aforesaid injuries sustained by his wife the claimant KENDY PAREDES. Claim is made for loss of services and incurred medical expenses in an amount in excess of the sum of TEN MILLION (\$10,000,000.00) DOLLARS on behalf of claimant, HUMBERTO TAVERAS.

Dated: Great Neck, New York
July 8, 2013


JACK A. YANKOWITZ


THE YANKOWITZ LAW FIRM, PC
Attorney for Claimants
KRISTY ABREU, KENDY PAREDES AND HUMBERTO TAVERAS
175 East Shore Road
Great Neck, NY 11023
(516) 622-6200

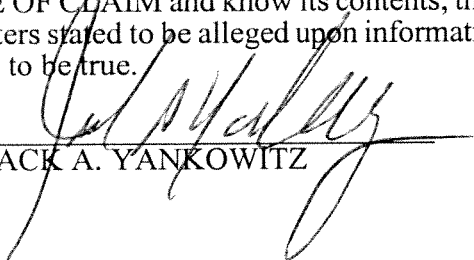
VERIFICATION

STATE OF NEW YORK

ss.:

COUNTY OF NASSAU}

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimants, KRISTY ABREU, KENDY PAREDES AND HUMBERTO TAVERAS;; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.


JACK A. YANKOWITZ

Sworn to before me this
8 day of July, 2013.


Notary Public

MARIELA GERMAN
NOTARY PUBLIC, STATE OF NEW YORK
NO. 01GE6116248
QUALIFIED IN NASSAU COUNTY
TERM EXPIRES SEPTEMBER 20, 20 14

Miss Westchester 2013



Kristy Abreu

MASSCOT 0910

NEW YORK STATE REGISTRATION DOCUMENT

G PAS

FSM7266

2006 HONDA NONTTRANSFERABLE

2DSD BL

2HGFG12656H530841

002650 G 4

FP387359 DEC 08 2011

Wt/Seats

Fuel/Cyl

PFE YDO814

Expires 12/07/13

NYMA

PARADES, KENDY

17 HANCOCK AVE APT 2

21.00

YONKERS

NY 10705

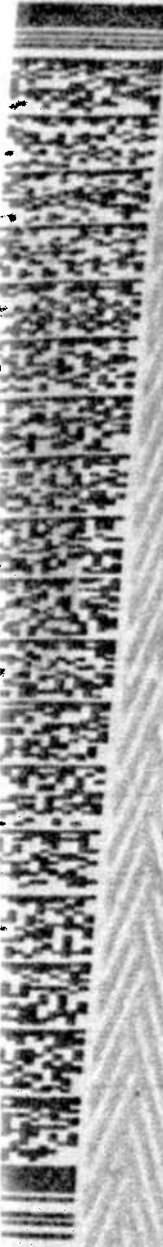
ANNUAL CHG

AMT PAID (INCL. ADD CHG)

FP387359

VOID IF ALTERED EXCEPT FOR ADDRESS

699.50



NEW YORK STATE

Commissioner of Motor Vehicles



DRIVER LICENSE

ID: 341 925 115 CLASS

PAREDES
KENDY

3235GRD CONCOURSE 2G
BRONX NY 10468

DOB: 01-30-75

SEX F EYES BR HT 5-06

E NONE

H NONE

ISSUED: 01-09-13 EXPIRES: 01-30-19 03Y6CAVR

TEMPORARY NEW YORK STATE INSURANCE IDENTIFICATION CARD

THE ASSOCIATION'S PUBLIC AFFAIRS

APPLICATION

666

OF AN INSTRUMENT TO BE NEGOTIATED BY THE PLAS

RECEIVED 12 15 1966 FROM THE UNIVERSITY OF CALIFORNIA

[illegible]

EXISTING POLICY

10

Nature of Community

Author's note:

If vehicle is already registered, the Owner must provide the date to be indicated on the form, or provisions of the policy.

Agreements with interest to the foregoing FINANCIAL SECTION

2000年12月20日

000829309A

ARTIFUR W BERRY JK.

2007

HONDA
Hatchback

811 MCLEAN AVE.

YONKERS, NY 10704

2HGFCL2656HIS30841

COMMUNICATIONS

1. The first step is to identify the problem or question that needs to be answered. This involves understanding the context and the specific requirements of the task.

PARADES, KENDY

17 HANCOCK AVE.,
BOSTON, MASS.

YORK FRS. NY 10103

1000

Leafy Tomato Pesto



VIN		TITLE NO. / STATE		INVOICE NO.	
MAKE	MODEL/SUB SERIES	BODY	COLOR	ENG	INT
HONDA	CIVIC LX	2DCP	BLUE		

NOTES:

Sold/BA

IF CLERK SOLD BY

USE OF OUR PLATE OR AUTHORIZED SIGNATURE, HEREBY AGREE TO PAY
ED SALE PRICE FOR THE VEHICLE DESCRIBED IN THIS VOUCHER, UNDER
AND RULES OF THE ABOVE NAMED AUCTION AND SUBJECT TO
ON REVERSE SIDE.

0150118 1172 11 EXHAUST

STONY AUTO HALL INC

CORNER ST STE 193

SETON, NJ 08302

731-1145

VENTURA

BUYER'S SIGNATURE (BUYER)

MUST RETURN SIGNED COPY OF ODOMETER DISCLOSURE STATEMENT (FRONT &
LE IF MADE ON TITLE) TO TRANSFEROR (SELLER) OR BE SUBJECT TO CIVIL &
PALTIES, INCLUDING FINES AND JAIL, Truth in Mileage Act of 1996; 49 C.F.R. 580.5(f).

5268783 1097101

NORTH JERSEY AUTO GROUP LLC

524 LEXINGTON AVE

CLIFTON, NJ 07011

0374211

SELLER

LICENSE NO.

TAB

BUYER PLEASE CHECK ONE

☐ CLEAN ☐ ROUGH ☐ AVERAGE

(1) (2) (3)

NOTICE:

- Do not re-purchase or finance without certificate of title.
- Auction retains security interest in vehicle until good funds received.

ODOMETER DISCLOSURE STATEMENT Section 580.5 Disclosure form
FEDERAL LAW (AND STATE LAW, IF APPLICABLE) REQUIRES THAT YOU STATE THE
MILEAGE UPON TRANSFER OF OWNERSHIP. FAILURE TO COMPLETE OR
PROVIDING A FALSE STATEMENT MAY RESULT IN FINES AND/OR IMPRISONMENT.

☐ (1) I hereby certify to the best of my knowledge the odometer reading
reflects the amount of mileage in excess of its mechanical limits.

☐ (2) I hereby certify that the odometer reading is NOT the actual mileage
-WARNING- ODOMETER DISCREPANCY

I, NORTH JERSEY AUTO GROUP LLC

STATE THAT THE ODOMETER NOW READS
71900 MILES (NO TENTHS) AND TO THE BEST OF MY
KNOWLEDGE THAT IT REFLECTS THE ACTUAL MILEAGE OF THE VEHICLE
DESCRIBED HEREIN, UNLESS NOTED DIFFERENTLY ABOVE.

For value received I hereby sell, assign or transfer the vehicle described on this document
to the purchaser named at left.

X
TRANSFEROR'S SIGNATURE (SELLER)

X
PRINTED NAME OF (SIGNOR)

ASSUMES NO RESPONSIBILITY NOR GUARANTEES
ACCURACY OF THE ODOMETER READING
DOCUMENT NOT VALID FOR EXPORT



Manheim

IT A RECEIPT OF PAYMENT

THIS IS SOLELY A TRANSACTION BETWEEN THE BUYING AND SELLING PARTIES. NO REPRESENTATION OF TITLE TO THIRD PARTIES IS MADE OR INTENDED. SUBJECT TO AGREEMENT ON REVERSE SIDE

REPAIRS

REORDER FROM KAR KARE DISTRIBUTORS • 1-800-731-6886 • ITEM # 4651

[illegible]

AA18762154

POLICE AGENCY

LOCAL POLICE CODE

APR NO. 1

DATE OF BIRTH (MM/DD/YY)

STATE

VEH. TYPE

VEH. MAKE

VEH. COI

REG. STATE

REGISTRATION EXPIRES (MM/DD/YY)

PLATE #

DATE OF OFFENSE (MM/DD/YY)

TIME (GROSS MEAS)

IN VIOLATION OF: (SECTION AND SUBSECTION)

DESCRIPTION / NARRATIVE

PLACE OF OCCURRENCE

CITY

COUNTY OF

COMPLAINANT SIGN AND PRINT NAME (PRINT)

ADJUDICATOR NAME (PRINT)

DATE

TIME

OFFICER'S SIGNATURE

OFFICER'S NAME

OFFICER'S ID

TRAFFIC VIOLATIONS BUREAU HEARING OFFICES (718) 405-6710

TRAFFIC VIOLATIONS BUREAU

YOU MUST ANSWER THIS TICKET WITHIN 15 DAYS OF THE DATE OF OFFENSE. TO ANSWER ON-LINE AT WWW.DMV.NY.GOV/PLEAD.HTM OR BY MAIL, FOLLOW THE INSTRUCTIONS ON THE OTHER SIDE.

FAILURE TO ANSWER WILL RESULT IN THE SUSPENSION OF YOUR LICENSE AND A DEFAULT JUDGMENT AGAINST YOU.

MOTORIST COPY-TRAFFIC VIOLATIONS BUREAU

AA18762154

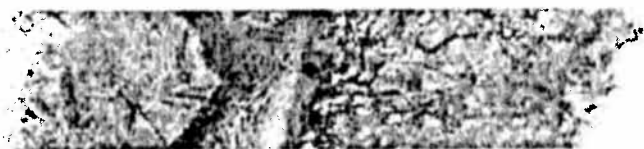
UT-00 (11/18)

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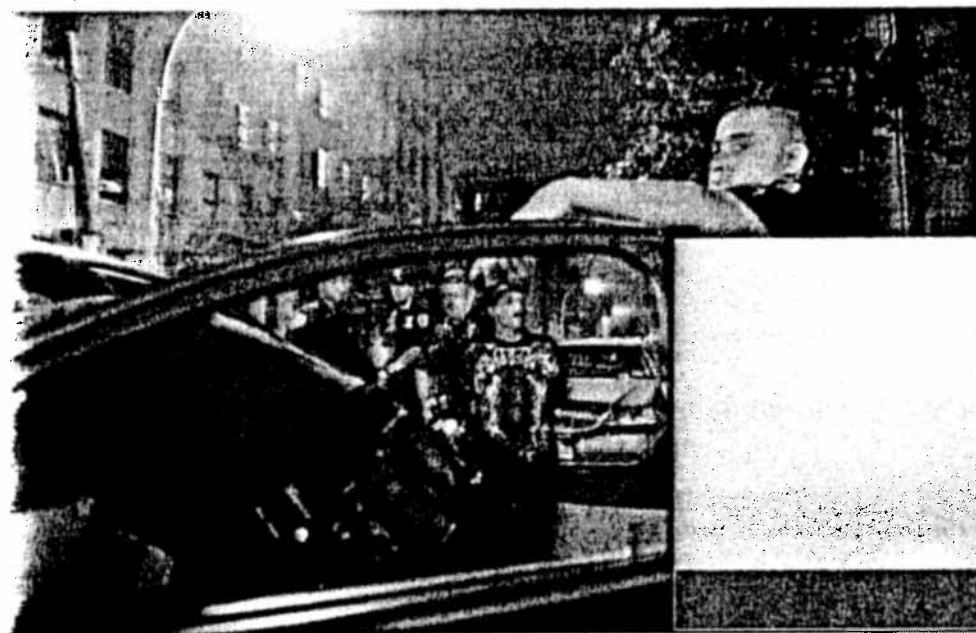


TEMASEK Beyond Investing

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Pockets of City See Higher Use of Force During Police Stops



Two precincts in the Bronx have higher rates of violence during police stops than other precincts in the city. Here, a man is arrested outside the building where he was for playing loud music.

By RAY RIVERA

Published: August 15, 2012 | 273 Comments

The crowded neighborhoods of the West Bronx come alive at night. Residents, young and old, cluster around door stoops. Teenagers fill playground basketball courts. Police officers from the nearby 44th and 46th Precincts patrol the streets, from time to time stopping and frisking young men, mostly black and Latino. And when they do, statistics show, they use physical force far more often than the police do anywhere else in the city.

GRAPHIC: In Some Parts of the City, a Common Police Practice

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conversation.



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The New York City Police Department

has come under increased scrutiny in recent years over the racial disparities and the sheer volume of street stops it makes under its "stop, question and frisk" policy, a crime-fighting technique under which officers stop people they reasonably believe are committing or about to commit a crime. Last year, the police made a record 680,000 stops, more than 80 percent of those people black or Latino. A federal judge this summer approved a class-action lawsuit accusing the department of using race as a basis for the stops.

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City Room: New York Today: Auto Exit

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- OP-ED CONTRIBUTOR
My Mother's Abortion
- THE BALANCING ACT
Coveting Not a Corner Office, but Ti
at Home

LETTERS

6. All-American Goddesses

7. CRIME SCENE A Thief Tells How He Steals, and Wh He Likes to Eat

8. OP-ED CONTRIBUTOR In Australia, Misogyny Lives On

...the police used some level of physical force in more than one in five stops across the city last year, according to an analysis by The New York Times. In the West Bronx, the rate was more than double that. Yet the high level of force seldom translated into arrests, raising questions among black and Latino leaders about whether officers were using enough discretion before making the stops in the first place, much less before resorting to force.



PHOTOGRAPH BY THE NEW YORK TIMES
The Times interviewed dozens of people in the 32nd, 44th, 46th and 115th Precincts who told stories of physical encounters with the police. Many of the people interviewed said they had been stopped multiple times without any force being used. But if they displayed any resistance, even verbally, like asking why they were being stopped, the police sometimes got rough. Corroborating their stories is difficult because police data does not name those stopped or the officers making the stops.

Readers' Comments

We make way too many excuses for police violence. If they can't maintain discipline, get them off the force or put them in jail."

coming, San Francisco

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some level of physical force in these encounters. People who have been stopped say that if they show the slightest bit of resistance, even verbally, they can find themselves jammed against walls, forced to the ground and, on rarer occasions, with officers' guns pointed at their heads.

The police used some level of physical force in more than one in five stops across the city last year, according to an analysis by The New York Times. In the West Bronx, the rate was more than double that. Yet the high level of force seldom translated into arrests, raising questions among black and Latino leaders about whether officers were using enough discretion before making the stops in the first place, much less before resorting to force.

The four precincts with the highest use of force — the 32nd in Upper Manhattan, the 44th and 46th in the Bronx and the 115th in Jackson Heights, Queens — all include or have included what the police call "impact zones," violent pockets that the police routinely flood with officers, often in their first assignment out of the academy, in an effort to suppress crime. That combination of putting inexperienced officers in the worst neighborhoods may be one reason that the use of force is so high, residents said. And the encounters, they added, while apparently not leading to a higher number of physical injuries, do create lasting

feelings of resentment and a distrust of officers.

"I feel sometimes a lot of the rookies that come out don't have the proper training, and it's actually a fear factor on their part," said Felipe Carrion, 42, who runs a barbershop on the Grand Concourse in the 44th Precinct. "They're actually afraid of getting hurt themselves."

Two months ago, Mr. Carrion said, he was standing outside his shop when two officers confronted him.

"They asked me what I was doing in front of the shop and I said I was the owner," he recalled. "They said, 'No, you're not. You're not the owner. Let's see some ID.'"

But as Mr. Carrion reached for his identification, the officers shoved him against the wall.

"I was like, 'You're using police brutality. You're not supposed to be doing that. Let me show you ID.'"

The officers calmed down after he showed them his identification, but not before shoving him against the wall again and searching him, he said. Both officers, he said, "looked like they were right out of the academy."

The Times interviewed dozens of people in the 32nd, 44th, 46th and 115th Precincts who told stories of physical encounters with the police. Many of the people interviewed said they had been stopped multiple times without any force being used. But if they displayed any resistance, even verbally, like asking why they were being stopped, the police sometimes got rough. Corroborating their stories is difficult because police data does not name those stopped or the officers making the stops.

Police officials defend the stops as an effective crime deterrent. They played down The Times's findings about use of force, saying that the only reason the four precincts had such high levels was because officers there checked a box marked "hands on suspect" more often on the form they are required to fill when conducting stops. Other boxes include "weapons used" and "person on ground." David J. Brainerd, the department's chief

Women



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anytime the officer's hand comes into physical contact with the subject."

"This could occur during a frisk or to guide a suspect to the sidewalk," he wrote in an e-mail.

But John A. Eterno, a former New York Police captain who used to train officers on the stop-and-frisk tactic, disputed that, saying officers are trained to check the box only "whenever some sort of force is used to control the situation, or to make sure that either the officer's safety or somebody else's safety is maintained."

Dr. Eterno, who retired in 2003 and is now a criminologist at Molloy College on Long Island, added, "You could frisk a person without any use of force at all."

The 46th Precinct has about 128,000 residents and includes the predominantly black and Hispanic neighborhoods of University Heights, Morris Heights and Fordham. Officers used force in 58 percent of stops last year, the highest rate of any of the city's 76 precincts, according to The Times's analysis. Yet, just 3 percent of stops that involved force resulted in an arrest — the lowest rate in the city. By contrast, officers in the 111th Precinct in the Bayside neighborhood of Queens, which is 87 percent white and Asian, were the least likely to apply force, using it in 4.7 percent of stops. Yet 40 percent of those stops ended in an arrest.

It was in the 46th Precinct that Christopher Graham said he was stopped by two officers last winter as he and a friend were leaving his friend's apartment building. The officers guided them to the wall of the building and began frisking them, Mr. Graham, 19, said. When the officer got to his groin area, Mr. Graham flinched, he said.

"I said, 'Whoa, what are you doing?' " Mr. Graham recalled. "The cop put his hand on the back of my cap and, boom, smashed my head into the wall of the apartment, for no reason."

The resulting gash sent blood gushing down his cheek and took six stitches to close, he said. Mr. Graham, who was neither arrested nor issued a summons in the stop, still bears a scar next to his left eye.

Over the previous six years through 2011, officers in the 44th Precinct led the city in force used, applying it in 54 percent of all stops, more than double the city average of 23 percent over that period. In 2010, officers there used force in more than 6 out of every 10 stops. The 32nd Precinct in Central Harlem and the 115th Precinct in Jackson Heights and Corona, Queens — also predominantly black or Hispanic — had among the city's highest rates as well. Yet in each of these precincts, arrests when force was used were lower than the city average of 13 percent.

City Councilman Fernando Cabrera, who represents the West Bronx, called the numbers "alarming."

"If indeed they were resisting arrest, or if there were any other kinds of crimes being committed that would call for that kind of aggressiveness, you would expect to see a correlation in arrests," he said. "Instead, we see the total opposite."

Police officials also noted that complaints filed last year with the Civilian Complaint Review Board, an independent panel that investigates complaints of excessive force, were at the lowest level since 2003, and only a tiny fraction of those were substantiated. But many people interviewed by The Times said they had either never heard of the board, or did not believe complaining would do any good. Those interviewed said the use of force seldom led to physical injuries.

The presence of impact squads in high-crime areas is not enough to explain why force is used so often in some precincts. The 73rd Precinct in Brownsville, Brooklyn, has the city's highest violent crime rate, and the police stop residents at nearly three times the rate as in

Brownsville last year, well below the city average.

State Senator José R. Peralta, a Democrat of Queens whose district includes the 115th Precinct, said he was already concerned by the high number of stops in the area. But he said he was surprised to learn, from a Times reporter, how many of those encounters involved physical force.

"Those are very troubling statistics," he said. The community has some pockets of high crime, he added, but the overall amount does not correspond "to the extent of the force being used."

Reporting was contributed by Daniel Krieger, Randy Leonard, Sarah Maslin Nir, Nate Schweber and Tom Torok.

A version of this article appeared in print on August 16, 2012, on page A17 of the New York edition with the headline: Police Stop Data Shows Pockets Where Force Is Used More Often.

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BRONX

Complaints against cops up in three Bronx precincts: study

Overall, complaints are down. But precincts with high stop-and-frisk numbers tend to have more complaints against police.

Comments (5)

BY JENNIFER H. CUNNINGHAM/NEW YORK DAILY NEWS

TUESDAY, JULY 2, 2013, 7:28 PM

24 13 0



MARY ALTAFFER/AP

The city's stop-and-frisk policy has been a lightning rod for some. Precincts with high numbers of stops also have high numbers of complaints against police officers.

The Bronx precincts with the highest number of complaints against police officers in 2012 also had the highest number of stop-and-frisks.

Bronx residents logged 1,254 complaints last year, 22% of the citywide total, according to the Civilian Complaint Review Board's annual report.

Complaints in nine of the borough's 12 precincts dropped, but

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Precinct, encompassing Mott Haven, Port Morris and Melrose. The precinct's 165 complaints, up from 103 in 2011, were the second-highest in the city.

The number of complaints in the 42nd Precinct rose 7.4%, to 102, and the 49th Precinct's number increased 13.2% to 60.

The 14th Precinct — which includes Highbridge, Mount Eden and Concourse Village — logged the borough's most police complaints, 195, though that number was down from 215 in 2011.

The 4-0 had the highest number of stop and frisks in the city in 2012, while the 4-4 had the third highest — and that's no surprise, experts said.

"It is no coincidence that the precincts with the most complaints (against police) are the precincts with the highest stop-and-frisk activity," said Christopher Dunn of the New York Civil Liberties Union.

beaten to death by hammer in her own home; cops

Gang members of 6 Wild caught robbing Bronx drug dealers at gunpoint; cops

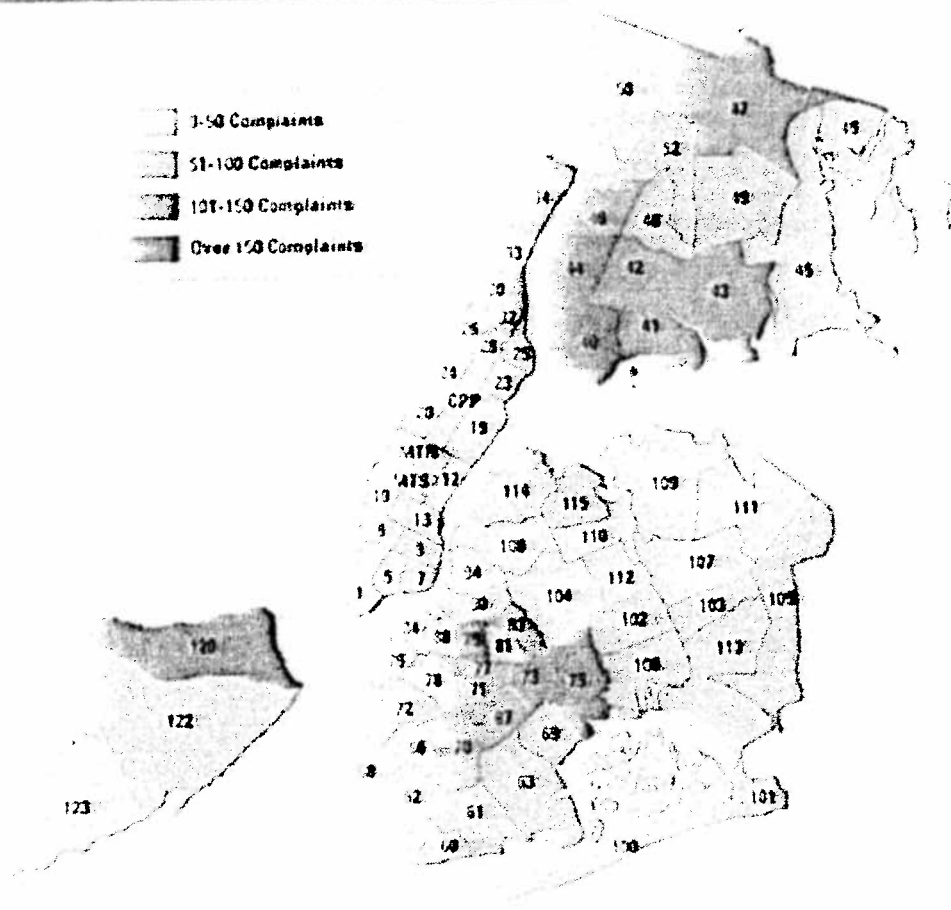
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Density of Complaint Filings January-December 2012 by Precinct



COURTESY CCRB

The Civilian Complaint Review Board released 2012 data on complaints against police.

The Civilian Complaint Review Board investigates allegations of police misconduct — including discourtesy, use of force or offensive language, and abuse of power — and decides if prosecuting the officer is warranted.

Citywide, stop-and-frisk complaints decreased 5% to 1,551 in 2012 from the previous year. The majority of people filing complaints — 57% — were African-American. Blacks were also the majority of people stopped by police.

In Manhattan, Central Harlem's 32nd Precinct logged the highest number of complaints against cops, with 105, down 13% from 120 in 2011. The precinct's 6,558 police stops-and-frisks were also

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John Mayer dedicates song to Katy Perry during concert

"She was more incredible than I ever thought," he said.



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Beyoncé celebrated Independence Day with a little red, white and Blue Ivy.



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citywide, complaints against police officers dropped 3% in 2012 to 5,763, the report said, but Dunn and Hurricane Sandy affected the agency's ability to log complaints until March.

"The notion that complaints are down 3% over the year is a mirage — and is solely the product of Sandy," Dunn said. "And that is something that applies across the board."

Robert Gangi, director of the Urban Justice Center's Police Reform Organizing Project, said complaint numbers could have dropped because people have grown disillusioned with the independent review board.

"The agency has a reputation as a weak watchdog at best," Gangi said. "People are frustrated by the outcomes of the investigations."

To file a complaint, visit www.nyc.gov/ccrb or call (800) 341-CCRB.

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Will Jenny McCarthy be the newest member of 'The View'? The former Playmate of the Year is in negotiations to join the



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Braxton doesn't have to sing another sad song about her financial situation.



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Beyonce's father Mathew Knowles remarries

Knowles wed real estate agent and former model Cera Charmaine Avery, 48, in Houston.



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0

I live right next to the 44th precinct and it's no lie that those cops are the worse! Very nasty and

Sending a message for Jazz

Yoni Golijov reports from New York City on a rally for an anti-NYPD activist.

September 6, 2012

"WE KNOW who you are." That's what two New York City police officers from the 32nd Precinct told Joseph "Jazz" Hayden as he videotaped them conducting a racially-motivated car search.

"We know who you are." This is what the same two officers said a few months later when they stopped Jazz in his car, supposedly for a broken tail light, though they never issued a ticket for it. Instead, the cops illegally searched his car and charged Jazz with two felony counts of possession of a dangerous weapon--for having a penknife and a commemorative mini-baseball bat.



Supporters of anti-police brutality activist Jazz Hayden listen to a speaker outside the 32nd Precinct (Yoni Golijov | SW)

And this is how Jazz's supporters responded, rallying outside the 32nd precinct last week: "We know who *you* are."

The conversations and speeches at the protest were rife with stories of brutality, injustice and police terrorism. Shaka Shakur, one of the organizers of the Keep Jazz Free committee and a member of the People's Survival Program, said during the speak-out: "The reason we chose the 32nd precinct is because all of the terrorists that terrorize this neighborhood live here."

More than 50 people, representing over 14 organizations, gathered to defend Jazz and denounce the crimes committed by the 32nd Precinct and the NYPD as a whole. In a police department notorious for racism and corruption, the 32nd Precinct has the disgusting "honor" of being one of the four most violent precincts of the 70-plus throughout New York City.

A mother of seven who lives near the precinct heard of the rally a few days before and came with her 7 year-old son, saying she wanted him to not only see protests on TV, but participate in them himself. During the speak-out, she shared a few of many personal stories about the 32nd Precinct.

For example, one of her older sons was sitting on the roof of their apartment building, a private building with roof access and wireless Internet. That didn't stop police, however, from waiting for someone to exit the building so they could enter and arrest her son, parading him out in cuffs in front of his younger siblings and making him pay a fine.

The woman said another son felt so violated and in danger because of the NYPD's racist

the city, even though that would make him ineligible for certain grants and loans. His choice is one made by hundreds, and possibly thousands, motivated by racist policing that has contributed to gentrification in Harlem.

THIS IS why Jazz Hayden videotapes the police. We need more people like Jazz--because the NYPD terrorizes hundreds of African Americans in New York City every day; because the NYPD stops children as young as 11 and inappropriately gropes women and men; because the NYPD slams heads into walls and body-slams youth to the ground.

We need to defend Jazz Hayden for his years of hard work and commitment--and to show others that if they videotape the police, they will have a movement behind them, ready to stand with them.

When he spoke, Shaka Shakur said, "So today, I decided to bring a weapon. A real weapon." He held up a small camcorder over his head to cheers, and continued:

This is the weapon right now. Everybody hold up your weapon. This is what they're scared of the most. This is why my brother is in the position he's in right now--because he found a new weapon, and he used that weapon effectively. See, this is a war we're in, and all they're doing is trying to force you and I to be scared to stand up for our rights.

See, I'm from Harlem. When I was a little dude I respected Jazz for another reason. Then when I got older, I respected him because he flipped his life. I didn't see Malcolm, but I met Jazz. I didn't know Malcolm, how he went from Detroit Red to Malcolm, but I know Jazz.

For anyone who knows Jazz or knows his story, the case is clear: Jazz is innocent, and the cops are the criminals.

Tens of thousands of people know of Jazz's without even realizing they do, because whenever news media use footage or a still of the NYPD's stop-and-frisk, chances are it's footage Jazz shot and uploaded to his grassroots media site, AllThingsHarlem.com.

Jazz has inspired, taught and collaborated with many justice-seekers--that's why the NYPD is targeting him for extra intimidation and up to 14 years in prison. On September 13, when the Manhattan district attorney Cyrus Vance convenes a grand jury hearing for Jazz's case, we need to stand with Jazz and for everyone's right to stand up to police terror--and one day live to free from it.



32nd Precinct police brutality



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NYPD stop and frisk, search the car of 2 men in Harlem.

Joseph "Jazz" Hayden films the incident and questions the officers

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Uploader Comments (AllThingsHarlem)



MrBigcromartie 1 year ago

My cousin knows you from back in the day. Told me all about you.

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Wow thats great! You could have saved yourself some time and just done a Google search. The info is all out there.

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MrBigcromartie 1 year ago

@allthingsharlem, you are a murderer and a drug dealer.

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AllThingsHarlem 1 year ago

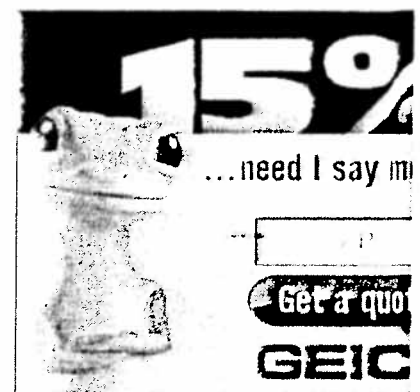
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I can only assume that those who support the police behavior here live in a world where this doesn't happen and, they have drank the cool-aid served up by the media that blacks and crime are synonymous. Well, the policemen in this case released these men without so much as a traffic ticket, an acknowledgement that the men did nothing wrong. There was no crime! Did you consider that when you made your remarks?



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and HUMBERTO TAVERAS

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT
THE NEW YORK CITY POLICE DEPARTMENT 32ND PRECINCT
NYC P.O. CHOWDHURY (OFFICER ID # 952584) AND
OTHER POLICE OFFICERS OF THE 32ND PCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

NOTICE OF CLAIM

THE YANKOWITZ LAW FIRM, P.C.
Attorneys for CLAIMANTS
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200

TO:

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

KRISTY ABREU, KENDY PAREDES and HUMBERTO TAVERAS,

Plaintiffs,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE NEW YORK CITY POLICE DEPARTMENT 32ND PRECINCT, NYC P.O. CHOWDHURY (OFFICER ID # 952584) AND “JOHN DOES”, OTHER POLICE OFFICERS OF THE 32ND PCT WHOSE NAMES AND IDENTITIES ARE PRESENTLY UNKNOWN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

THE YANKOWITZ LAW FIRM, P.C.
Attorneys for PLAINTIFFS
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200

TO: